

SENATE No. 454

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to conducting a study on the delivery of special education services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	
<i>Peter J. Durant</i>	<i>Worcester and Hampshire</i>	<i>3/17/2025</i>

SENATE No. 454

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 454) of Bruce E. Tarr for legislation relative to conduct a study on the delivery of special education services. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 356 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to conducting a study on the delivery of special education services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, the department of elementary
2 and secondary education, in partnership with at least 1 public institution of higher education,
3 local educational authorities and private educational providers, shall study the delivery of
4 education and services for students with disabilities pursuant to chapter 71B of the General Laws
5 and all applicable federal laws, including the Individuals with Disabilities Educational Act of
6 1990 and section 504 of the Rehabilitation Act of 1973, to provide an intersectional
7 understanding of the current delivery of education and services for students with disabilities, best
8 practices and appropriate placement and use for best practices.

9 The study shall include: (i) a consideration of the social and societal impacts on the
10 diagnosis of students with disabilities including, but not limited to, race, ethnicity, gender,

11 immigration status, parents' education background and socioeconomic status; (ii) a
12 comprehensive evaluation of existing and potential models for providing education and services
13 for students with disabilities, in both inclusive in-district and out-of-district settings and the
14 associated costs and benefits including, but not limited to, the costs of personnel compensation,
15 transportation, housing, specialized services and supports and assistive technologies; and (iii)
16 proposed means by which individualized instruction may be provided in an inclusive manner to
17 all students. The department shall submit its recommendations, together with any proposed
18 legislative necessary to carry those recommendations into effect, by filing the same with the joint
19 committee on education and the clerks of the senate and house of representatives not later than
20 May 1, 2026.